

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ FOR PROPOSAL (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Solicitation/Contract Form Continuation

Warehouse and Storage Support

CONTRACT ADMINISTRATION APPOINTMENTS AND DUTIES (SEP 2015)

In order to expedite administration of this contract/order, the following delineation of duties is provided including the names, addresses and phone numbers for each individual or office as specified. The individual /position designated as having responsibility should be contacted for any questions, clarifications or information regarding the functions assigned.

1. PROCURING CONTRACTING OFFICER (PCO) is responsible for:
 - a. All pre-award information, questions, or data;
 - b. Freedom of Information inquiries;
 - c. Change/question/information regarding the scope, terms or conditions of the basic contract document; and/or
 - d. Arranging the post award conference (See FAR 42.503).

Name: Christopher Whiteside
Address: 1968 Gilbert St. Norfolk, VA 23511
Phone: (757) 443-0780
Email: christopher.d.whiteside2.civ@us.navy.mil

2. CONTRACT ADMINISTRATION OFFICE (CAO) is responsible for matters specified in FAR 42.302 and DFARS 242.302 except in those areas otherwise designated herein.

Name: Brittany Simmons
Address: 1968 Gilbert St. Norfolk, VA 23511
Phone: 757-443-1455
Email: brittany.s.simmons3.civ@us.navy.mil

3. DEFENSE CONTRACT AUDIT AGENCY (DCAA) is responsible for audit verification/provisional approval of invoices and final audit of the contract prior to final payment to the contractor.

Name: N/A
Address:
Phone:

4. PAYING OFFICE is responsible for payment of proper invoices after acceptance is documented.

Name: DFAS CLEVELAND

5. CONTRACTING OFFICERS REPRESENTATIVE (COR) is responsible for:
 - a. Liaison with personnel at the Government installation and the contractor personnel on site;
 - b. Technical advice/recommendations/clarification on the statement of work;
 - c. The statement of work for delivery/task orders placed under this contract.
 - d. An independent government estimate of the effort described in the definitized statement of work;
 - e. Quality assurance of services performed and acceptance of the services or deliverables;
 - f. Government furnished property;
 - g. Security requirements on Government installation;
 - h. Providing the PCO or his designated Ordering Officer with appropriate funds for issuance of the Delivery /Task order; and/or
 - i. Certification of invoice for payment.

NOTE: When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract (or delivery/task order), the Contractor shall promptly notify the Contracting Officer (or Ordering Officer) in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract or, in the case of a delivery/task order, until the Ordering Officer has issued a modification of the delivery/task order; or until the issue has otherwise been resolved. THE COR IS NOT AN ADMINISTRATIVE CONTRACTING OFFICER AND DOES NOT HAVE THE AUTHORITY TO DIRECT THE ACCOMPLISHMENT OF EFFORT WHICH IS BEYOND THE SCOPE OF THE STATEMENT OF WORK IN THE CONTRACT OR DELIVERY/TASK ORDER.

COR Name: CDR Justin Hunnell
Address: 452 Warehouse St, Norfolk, VA 23511
Phone: (757) 433-2297
Email: justin.m.hunnell2.mil@us.navy.mil

In the event that the COR named above is absent due to leave, illness, or official business, all responsibilities and functions assigned to the COR will be the responsibility of the alternate COR listed below:

ACOR Name: N/A
Address:
Phone:

6. TECHNICAL ASSISTANT, if assigned by the requiring activity, is responsible for providing technical assistance and support to the COR in contract administration by:

- a. Identifying contractor deficiencies to the COR;
- b. Reviewing contract/delivery/task order deliverables and recommending acceptance/rejection of deliverables;
- c. Identifying contractor noncompliance of reporting requirements;
- d. Evaluating contractor proposals for specific contracts/orders and identifying areas of concern affecting negotiations;
- e. Reviewing contractor reports providing recommendations for acceptance/rejection;
- f. Reviewing invoices for appropriateness of costs and providing recommendations to facilitate certification of the invoice;
- g. Providing COR with timely input regarding the SOW, technical direction to the contractor and recommending corrective actions; and
- h. Providing written reports to the COR as required concerning trips, meetings or conversations with the contractor.

Name: N/A
Address:
Phone:

7. ORDERING OFFICER is responsible for:

- a. Requesting, obtaining, and evaluating proposals for orders to be issued;
- b. Determining the estimated cost of the order is fair and reasonable for the effort proposed;
- c. Obligating the funds by issuance of the delivery/task order;
- d. Authorization for use of overtime;
- e. Authorization to begin performance; and/or
- f. Monitoring of total cost of delivery/task orders issued.

The following limitations/restrictions are placed on the Ordering Officer:

- a. Type of order issued is limited by this contract to the contract type or types covered by this contract and to any limitations on the warrant of the individual placing the orders;
- b. No order shall be placed in excess of \$----- without the prior approval of the PCO; and/or
- c. No order shall be placed with delivery requirements in excess of -----.

Name: N/A

Address:

Phone:

(End of Text)

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Storage & Warehousing Svc-Norfolk Pricing Arrangement: Firm Fixed Price	12	Months		
0002	Storage & Warehousing Svc-Oceana Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0003	Storage & Warehousing Svc-Norfolk Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0004	Storage & Warehousing Svc-Oceana Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0005	Storage & Warehousing Svc-Norfolk Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0006	Storage & Warehousing Svc-Oceana Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0007	Storage & Warehousing Svc-Norfolk Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0008	Storage & Warehousing Svc-Oceana Pricing Arrangement: Firm Fixed Price	12	Months		

Option Line Item 0009	Storage & Warehousing Svc-Norfolk Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0010	Storage & Warehousing Svc-Oceana Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0011	Storage & Warehousing Svc-Norfolk Pricing Arrangement: Firm Fixed Price	6	Months		
Option Line Item 0012	Storage & Warehousing Svc-Oceana Pricing Arrangement: Firm Fixed Price	6	Months		

Continuation of Description

PERFORMANCE WORK STATEMENT

1.1.1 Overview

This Performance Work Statement (PWS) describes the requirements for the warehousing Supply function to support all customers of the Navy Regional Supply Office, Norfolk, (RSO Norfolk) in Norfolk, Virginia and the Regional Supply Office, Oceana (RSO Oceana), in Virginia Beach, Virginia utilizing applicable Supply Management Information systems, manual systems, multiple databases and software programs. The Contractor shall provide all supervision, management, personnel, equipment and necessary supplies to perform all tasks associated with all warehousing functions individually described and specified in this PWS.

1.2 Scope of Work

Warehouse operations support services include: Supplemental Aviation Spares Function (SASS), receiving, storing, Care For Material In Stock (COMIS), re-warehousing, issuing, delivery, pick up, crating, packing, physically handling, loading and unloading Government owned stock material and/or material ordered to support customers of RSO Oceana and RSO Norfolk.

Specific site tasks are identified in Section 5 of this PWS. The Contractor shall provide all personnel, management, supervision, equipment, tools, supplies, materials, transportation, and any other items and services necessary to perform the functions in this PWS except that which is made available by the Government and specified in Section 3 "Government Property and Services Provided". The work shall be performed at the locations/sites mentioned above and IAW Technical Exhibit (TE) 4 "Directives and Publications" and TE 21 "Forms Index". The Contractor shall electronically scan all supply related (receipt/stow/issue/shipping) documents for potential review and retrieval using the Financial Audit Compliance Enhancement Tool (FACET) at RSO Oceana, manual filing is still required for RSO Oceana and Norfolk.

The following paragraphs introduce the general scope of work that will be performed at the Regional Supply Offices. They are a brief summary and work breakout of the function typically found at these locations.

1.2.1 Warehouse Operations

Warehouse Operations include receiving, storing, issuing, packing/crating, excessing, disposing of, preserving, and the overall maintenance and Care of Material in Storage (COMIS) and updating and maintaining the accuracy of applicable supply management information systems and databases. Materials warehoused include: general consumables, classified, pilferable, binnables, bulk items, repairables stored in various buildings and

environments (e.g. outdoor storage).

1.2.2 Material Delivery Operations

All material deliveries (stock and DTO) will be coordinated with the respective site's Material Delivery Unit (MDU). Large, heavy, bulky items will require delivery by the contractor as designated by the DGR. Material Delivery Operations include managing local (on base) delivery services, staging and sorting material, dispatching, preparing manifests, and coordinating the organic or commercial shipment of materials, IAW Naval Aviation Maintenance Program (NAMP) and Uniform Material Movement and Issue Priority System (UMMIIPS) timeframes. Operations include material such as: Material Turned Into Stores (MTIS) or repairables for return to supply, to include Offload material and items scheduled for DLA Distribution Services (formerly known as DRMO). Traffic management support includes preparing small package Commercial Bills of Lading (CBL), preparing and affixing shipping labels, coordinating other than small package shipments with the DGR, and performing liaison with supported customers for organic shipment requirements. Support includes certifying shipments containing hazardous material (HAZMAT)/weapons/ordnance, and posting issues to applicable supply management information systems and databases.

1.2.3 Customer Service Support

Coordinating resolution of customer problems and complaints in all aspects of issuing, delivering and shipment of materials.

1.2.4 Inventory Support

Inventory support includes processing discrepant materials by providing the DGR with information on receipts/issues that are a discrepancy, and assisting the DGR with physical inventory actions. Performing Quality Control by recommending and monitoring changes in warehouse processes, and reporting statistics on a daily basis. Special materials managed can include: pools of material to support squadrons/aircraft carriers or other categories of material requiring special training, storage, or handling.

1.2.5 Program Management Support

Program Management Support includes Aviation Support Detachment (ASD) material support, creating reports, and measuring/reporting performance metrics.

1.3 Personnel Requirements

The Contractor shall provide qualified personnel to accomplish all work and services required by this PWS. This provision shall apply notwithstanding past historical records, estimates of personnel needed, or any minimum levels established elsewhere in this PWS. Contractor employees shall be trained, qualified, certified, or licensed as required in this PWS prior to starting work. The Government will provide initial skills training to Contractor

employees for N-ERP and Express Small Package shipping data base entry requirements. TE-2 "Certifications, Licenses, and Security Clearances" provides detailed requirements. The Contractor shall maintain records of training, certifications, and licenses. The Contractor shall ensure that the employees remain fully qualified to perform the work assigned. The Contractor shall maintain a management plan that includes a comprehensive staffing chart. The staffing chart shall specify the number of people, type of position (FTE, part-time, full-time, intermittent, etc.), labor categories, hours, and function assigned, and identification of mission essential personnel.

The Contractor shall make the plan available to the Contracting Officer prior to contract performance, and modify the plan when necessary to ensure compliance with this PWS.

The contractor shall employ persons physically qualified for performing the duties assigned, considering factors such as strength, endurance, agility, coordination, and visual and auditory acuity. This includes, but is not limited to, personnel being able-bodied, having the ability to stoop, bend, climb ladders, and stand or walk for long periods of time. Personnel may be required to lift objects weighing up to forty-five (45) pounds.

The contractor shall not permit an employee to work while his/her ability or alertness is impaired by fatigue, drugs, illness or other causes that might unnecessarily expose himself/herself or others to injury or damage to property. The contractor or COR can discuss the removal from the work premises any contractor employee with indications of physical limitation or emotional instability which might create a hazard or adversely affect response to work situations.

The contractor shall ensure that personnel handling classified material shall possess a security clearance commensurate with the same level of security of material being handled.

Personnel absences and terminations do not relieve the Contractor of the responsibility to perform tasks required by this PWS timely and accurately. The Contractor shall employ qualified temporary or permanent personnel replacements.

1.3.1 Key Personnel

The Contractor shall designate two Site Managers who are fully qualified to manage and perform the required work. A Site Manager shall be physically located at RSO Norfolk, Building SP-86, Norfolk, VA, and at RSO Oceana, Building 720, Virginia Beach, VA (refer to Section 1.6 "Operating Policies").

The Site Managers shall serve as the principal point of contact for the COR, and shall be physically available to oversee Warehouse Supply functions during core business hours. The Primary Site Manager will immediately contact the COR with any problems or concerns with regard to the performance of this contract. The Contractor shall provide a point of contact list, including name(s) and telephone number(s), to respond to emergencies in the absence of the Site Manager. The contact list will be updated as personnel changes occur.

1.3.2 Site Managers

Site Managers shall have a minimum of five years of supervisory experience in military Base Operating Support (BOS) and aviation logistics support within the last seven years. The Site Manager shall be available on a full-time basis; however, he/she may perform other Warehouse Supply functions while serving in this capacity. The Site Manager must assume full-time responsibility for the supervision of site operations. During the absence of the Site Manager, a designated person shall be authorized to act for the Site Manager. Site Managers shall be assigned to and physically located at each of the following designated work sites, and have responsibility over respective tasks described in sections 5

RSO Norfolk - Building SP-86, Norfolk, VA RSO

Oceana - Building 720, Virginia Beach, VA

1.3.3 Essential/ALFA Personnel

Essential/ALFA personnel shall perform warehouse supply functions identified in TE-3, "Essential Services" during suspended installation operations due to reasons including inclement weather, natural disasters, and heightened security operations (refer to Section 1.6.4 "Heightened Security Operations", Section 1.6.5 "Inclement Weather and Natural Disasters", and Section 1.6.6 "Destructive Weather Operations").

1.3.4 Training/Certifications, Licenses, and Security Clearances

Contractor requirements for "Certifications, Licenses, and Security Clearances" are listed in TE-2. As noted in TE-2, some of the training required for certification and licensing is government-furnished, and some shall be the responsibility of the Contractor to obtain. The government will provide initial training for the contractor to enter receipt, issue, clear exception, etc. into the applicable databases (e.g. N-ERP etc.) At full performance start date, the Contractor shall provide the COR with copies of required certifications and licenses, and a schedule for employee training to meet the statutory and other applicable requirements shown in TE-2. The Contractor shall maintain records of training, certifications, licenses, and clearances. The Contractor shall ensure that employees' certifications, licenses, and clearances remain current during the period of performance.

1.3.5 Employment of Federal Employees

The Contractor shall not employ or enter into a contract with any person to perform work under this PWS who is an employee of the U.S. Government, either military or civilian, unless such person receives approval IAW Department of Defense (DOD) 5500.7R [Joint Ethics Regulation (JER)].

1.3.6 Non-U.S. Citizens/Minors

The Contractor shall ensure that all personnel employed in the performance of this PWS shall be

U.S. citizens, or non-U.S. citizens legally admitted into the U.S., who can produce evidence of legal authority to be employed in the U.S., IAW the National Industrial Security Program Operating Manual (NISPOM) and International Traffic and Arms Regulations (ITAR). Only persons 16 years of age and older may perform work for the Federal Government.

1.3.7 Language Requirements

All Contractor personnel shall be competent in reading, writing, speaking, and understanding English.

1.4 Local Meetings and Briefings

The Site Manager or designated representative shall participate in Supply-related meetings, conferences and briefings with customers, federal, state, and local agencies and their representatives, and other providers as required by the Government. These meetings, conferences and briefings may take place on-site or off-site and occur weekly, monthly, or as otherwise required. This requirement may vary based upon Contractor performance. Meetings, conferences and briefings may start or end outside core business hours.

When the Contractor attends meetings pursuant to this PWS, wherein a DGR is neither present nor represented, the Contractor shall furnish a written report, in memorandum format, to the COR within two working days after meeting completion. The report shall include identifying information, general observations, conclusions, recommended actions, and any additional information, such as handouts.

1.4.1 Weekly Routine Meetings

The Contractor shall meet to discuss program status with the COR at least weekly throughout the performance period. Program status includes workload, performance, cost and Contractor concerns.

1.5 Quality Control and Quality Assurance

1.5.1 Quality Control Plan

The Contractor shall submit a Quality Control Plan at the beginning of contract performance and make the plan available to the Government upon request, and modify the QCP when necessary to ensure the PWS performance requirements and standards are met.

1.5.2 Quality Assurance Surveillance Plan (QASP)

. The Government quality assurance evaluators (QAEs) will monitor and survey the Contractor's performance according to the terms of this PWS.

. The Government QAEs will report the Contractor's performance under this PWS according to the procedures, methods, and guidelines set forth in the QASP

. The Government QAEs will continuously observe the Contractor's performance under this PWS

and record all observations of incomplete or defective performance and safety and health standards violations. The Government QAEs will issue written notices to the Contractor of deficient performance. The Contractor shall reply in writing within five business days after receipt, explaining reasons for reported performance deficiencies and standards violations, the corrective action, and procedures taken to prevent reoccurrence.

. Procedures to be taken when performance standards are met or not met: Positive: Letters of Commendation and Letters of Appreciation, Favorable Performance Reviews, FAR Clause 52.212-4(a) - Inspection/Acceptance and 52.212-4(m) Termination for Cause, and negative performance will be documented on CPARS.

1.6 Operating Policies

1.6.1 Operating Hours

The Contractor shall provide services during the following hours, unless otherwise noted in Sections 5; however the time standards shown in TE-4, "RSO Oceana Performance Requirement Summary" and TE-5, "RSO Norfolk Performance Requirement Summary" are based on 24 hours per day, 365 days per year, and must be met.

All services prime work shifts (Note 1)	MON-FRI	0730-1600
Storage/Issue/Receipt "Premium Mode Shipments" And the delivery of oversized material requirements (Note 2)	MON-SUN	24 hours
Packing/ Shipments/ Shipment Loading/ Shipment Certification (Note 3)	MON-FRI	0730-2000
Packing/ Shipments/ Shipment Loading/ Shipment Certification (Note 3)	SAT	0730-1600

Note 1: For RSO Norfolk special pickups, deliveries, on-loads and off-loads of an emergency or mission essential nature may be scheduled for evenings. Sundays, and federal holidays.

Note 2: Will issue material from stock and process warehouse refusals 24 hours a day, 7 days a week, every day of the year.

Note 3: When notified of emergency requirements by the COR for packing/crating, small package shipment, liaison for other than small package shipments, or shipment certification, the Contractor will have qualified personnel on-board within one (1) hour of notification to the contractor that an emergency exists, unless personnel on-site are qualified to perform the function.

1.6.2 Federal Holidays

The federal holidays observed are: New Years Day, Martin Luther King's Birthday, Presidents' Day, Memorial Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day.

Should a federal holiday fall on a Saturday, the Friday immediately before is considered the holiday; if the federal holiday falls on a Sunday, the Monday immediately following is considered the holiday. If the holiday is normally observed on a designated day of the week, the day it is normally observed will be the holiday.

1.6.3 Temporary Base Closures

When an unforeseen installation closure or curtailment of activities occur on a regularly scheduled day of work, the Government will either:

- . Reschedule the work to be performed on the following workday; or
- . Reschedule the work on any day acceptable to the Government

The Government will announce installation closures, delayed openings, and curtailment of activities on local radio and television stations that broadcast closings and delayed opening announcements. Activities designated as essential services in TE-3 "Essential Services" shall be staffed during base closure unless otherwise directed by the COR or DGR.

1.6.4 Heightened Security Operations

The Contractor shall comply with CNRMA policies to ensure mission accomplishment during heightened naval installation security postures known as Force Protection Conditions (FPCons) Bravo, Charlie, and Delta (see Section 2 for definitions). The Contractor shall submit a list of essential personnel, designated as "Essential", to the COR every January or as personnel changes occur. Essential personnel shall report for duty during periods of

increased FPCons and shall present valid identification to gain access to the sites. An "E" on their Government identification card/identification pouch shall identify essential personnel.

1.6.5 Inclement Weather and Natural Disasters

The Contractor shall comply with CNRMA Winter Storm Condition plans, which outline operational procedures to follow in the event of accumulated snowfall, icy road conditions, freezing rain, and forecasts of snowfall or freezing conditions. The Contractor shall submit to the COR a list of mission essential personnel, designated as "Snow ALFA" personnel, for winter storm conditions. Snow ALFA personnel are required to perform essential duties during suspension of normal operations, unless otherwise directed by the COR or DGR. The Contractor shall also submit to the COR a list of non-essential personnel, designated as "Snow Bravo" personnel. In the event that the Navy has an essential mission requirement that necessitates additional contractor staff to work during inclement weather or natural disasters, the COR is authorized to direct the contractor to increase or fully staff operations notwithstanding CNRMA orders, plans, or instructions. The COR's directive to fully staff during adverse conditions will not entitle the contractor to any equitable adjustment nor form the basis of any claim for additional compensation.

1.6.6 Destructive Weather Operations

In the event of destructive weather (e.g., thunderstorms, severe windstorms, tornadoes, and hurricanes), the Contractor shall perform essential functions despite the cancellation of normal operations unless otherwise directed by the COR or DGR. The Contractor shall submit a list of essential personnel, designated as "Hurricane ALFA" personnel, by shift, for the period 1 June through 30 November, to the COR by 15 May of each year and update as necessary when personnel changes occur. The Contractor shall also submit to the COR a list of non-essential personnel, designated as "Hurricane Bravo" personnel. Hurricane ALFA/Bravo personnel are separate categories from ALFA/Bravo personnel designated for winter storm conditions. In the event that the Navy has an essential mission requirement that necessitates additional contractor staff to work during destructive weather, the COR is authorized to direct the contractor to increase or fully staff operations notwithstanding CNRMA orders, plans, or instructions. The COR's directive to fully staff during adverse conditions will not entitle the contractor to any equitable adjustment nor form the basis of any claim for additional compensation.

1.6.7 Strike Contingency Operations

The Contractor shall prepare a strike contingency plan to ensure the continuation of services required by this PWS in the event of a work stoppage, slow down, or similar action by Contractor employees. The Contractor shall maintain a copy of this plan on-site.

The Contractor shall provide to the COR, not later than the date of full performance, a contingency plan to provide critical services during declared labor strikes or work stoppages.

1.6.7.1 Contractor Non-Performance

Due to the critical importance of this service requirement, the Government reserves the right to take over or arrange for the takeover of performance of this effort in the event of a labor strike by the Contractor's employees

exceeding three workdays after the Contractor fails to implement a strike contingency plan or period of nonperformance (e.g. bankruptcy, default, etc.). The Contractor further agrees, under such circumstances, to permit the Government to use any essential Contractor-furnished property for an interim period. The Government shall equitably compensate the Contractor for the use of such property. The Government reserves the right to reduce the contract price due to the contractor's failure to fully perform, as well as the right to terminate the contract for cause, terminate the contract for the convenience of the Government, or to take any other remedial action authorized by the contract, or authorized by law.

1.6.8 Contingency Events

Emergency situations and wartime contingency operations may necessitate that the Contractor perform the requirements of this PWS either outside the core hours of operation or for extended periods of time. The Contractor shall provide the level of service requested by the COR. Emergency/wartime requirements necessitating the performance of workload outside the parameters of this PWS will be subject to consideration by the Government for an equitable adjustment. In the rare event the Contractor cannot be available due to emergency situations or wartime operations; the Government reserves the right to enter warehouse facilities to ensure continued performance. The Contractor further agrees, under such circumstances, to permit the Government to use any essential Contractor-furnished property for an interim period. The Government shall equitably compensate the Contractor for the use of such property. Such issues will be authorized by the COR and fully documented and the Contractor advised at next available opportunity.

1.6.9 Smoking/Drug Policy

The Contractor shall comply with Department of Defense (DOD) Instruction 1010.15 (Smoke- Free DOD Facilities), all federal and local command smoking policies and work force requirements.

By acceptance of this PWS, the Contractor agrees to comply with all applicable Federal Statutes, laws, and regulations, to implement a Drug Free Workplace Program (DFWP) that is equivalent to DON's DFWP as specified in SECNAVINST 5100.13C (Navy and Marine Corps Tobacco Policy) and OCPMINST 12792.3A [Department of the Navy (DON) Drug-Free Work Place Program]. For those positions which require drug testing (i.e., Motor Vehicle Operator, Top Secret Clearance, etc.) the Contractor will verify, by the date of the assumption of responsibilities, that such testing has been completed for those individuals, and that the Contractor will conduct random drug tests of persons with those responsibilities in the future.

1.6.10 Vehicle and Equipment Operation

Contractor personnel using Privately Owned Vehicles (POV) on DOD installations shall have proper permits for entry onto the installations. All Contractor vehicles (including POVs) must comply with the vehicle operation regulations that govern installations. All vehicles are subject to search while on DOD installations. Only licensed Contractor personnel shall operate vehicles on DOD installations. Vehicles shall be operated IAW local and state laws as well as installation specific traffic regulations listed below.

All Contractor vehicle and equipment operators shall comply with the licensing requirements of all federal, state, installation specific traffic regulations, and applicable requirements of NAVFAC P-300 (Management of Civil Engineering Support), NAVFAC P-307 (Management of Weight Handling Equipment), NAVSUP Pub 572 [Joint Services Manual (JSM) for Storage and Materials Handling], NAVSUP Pub 538 (Materials Handling Equipment Maintenance Manual), OSHA regulations, 29 CFR Part 1910 (Powered Industrial Trucks). For ordnance handling operations, the Contractor shall additionally comply with NAVSEA SW023-AH-WHM-010 (Handling Ammunition, Explosives, and Hazardous Material with Industrial MHE). The Contractor shall maintain on file and in the possession of the operator, proof of all qualifications.

Parking will be authorized in designated areas. Parking shall be on a first-come, first-served basis. The Government reserves the right to change parking arrangements at any time.

SECTION 5, REGIONAL SUPPLY OFFICE NORFOLK AND OCEANA

5.1 General Information

Regional Supply Offices Norfolk and Oceana provide Supply and Logistics support to aviation squadrons, ships, and resident activities in the Mid-Atlantic Region. The contractor shall provide on-site warehouse support at Norfolk Naval Station, Building SP-86 and Oceana Naval Air Station buildings 720, 722, & outside storage lot 731. Operating hours are listed in section 1.6.1. See also Technical Exhibits 5, 15, 16, 19 & 20 for Oceana and Norfolk respectively.

5.2 Conduct Warehousing

The Contractor shall receive and stow material; issue stock, custody, and direct turnover (DTO) material; package and preserve material; protect in order to prevent damage during handling and storage; provide local delivery service as required and shipment/transshipment of material; and process excess material. The Contractor shall annotate the material documents (1348-1/DD1149, etc.) in accordance with the Financial Improvement and Audit Readiness (FIAR) requirements of circling the quantity or lining out and annotating correct quantity, legibly printing name date and signing the documents and IAW NAVSUP Pub 723 (Navy Inventory Integrity Procedures). The Contractor shall QA to 100% all 1348-1/DD1149s etc IAW FIAR compliance. The Contractor shall provide overall

maintenance and care of warehouse spaces and Command Management Information System (COMIS), to include

organizing and consolidated open packages, separating all items taped together, removing all trash out of location and documenting all warehouse relocations and forwarding to the DGR for verification. Materials warehoused include general consumables, aviation depot level repairables (AVDLRs), "W" and "L" Purpose material (as applicable), pilferable, sensitive, classified material, and bulky items (e.g. helicopter gear boxes, helicopter transmissions, main landing gear, canopies and aircraft structural components). The Contractor shall maintain the accuracy of data entered into ERP as well as Inventory and Record Reconciliation Program (RRP) goals as set forth in COMNAVAIRPAC/COMNAVAIRLANT 4415.1 Instruction, Supply Operations Manual. Both sites are currently operating under the supply management system ERP. The Contractor shall maintain safety and health standards IAW OPNAVINST 5100.23F (Navy Occupational Safety and Health Program Manual). When high winds and destructive weather are predicted, the Contractor shall secure or move indoors, all material stowed outside. Once weather conditions return to normal, the Contractor shall return the material to their original location without losing or compromising inventory or location validity. (See TE 12, "Government Furnished Material Inventories Index") and 16 & 20 "RSO Historical Warehouse Operations Workload" for Oceana and Norfolk respectively.

5.3 Receive and Stow Material

The Contractor shall receive and stow stock and custody material, receive and stage or deliver DTO material as necessary to the site MDU as designated by the DGR and IAW NAVSUP Pub 723 (Navy Inventory Integrity Procedures). The Contractor shall offload, open and inspect all receipted material addressed to the Receiving Officer, RSO Norfolk/RSO Oceana, and ensure the material matches the receipt documentation description and quantity, and is undamaged. Any Class A/Class B explosive shipments shall be diverted to the base Weapons Department. The Contractor shall annotate the bill of lading/receipt documentation with receipt time, date, printed and signed name IAW FIAR directives and any information pertaining to overage, shortage or damage (OSD) and shall resolve discrepancies with the carrier or shipper. The Contractor shall sign receipt documents, verify purchase orders and quantities. The Contractor shall identify and attempt to correct any misdirected (frustrated) shipments and notify the COR of those shipments that cannot be resolved. The Contractor shall process receipt transactions (stock, custody, DTO, and MTIS), correct receipt exceptions and update the ERP database.

5.4 Receive and Stow Stock Material

The Contractor shall tailgate receipts, screen stock material, verify stock number, item number and/or nomenclature, annotate receipt documentation with appropriate serial number for all depot level repairable items, input receipt data, correct receipt exceptions, stow material, and update ERP with stowage information utilizing Automated Identification Technology (AIT). For RSO Norfolk, the Contractor shall stow "L" Purpose material with a PUK ID in the Supplementary Address in the designated area. The Contractor shall locate material with unique characteristics (e.g. confidential, pilferable, "W" Purpose, "L" purpose in separate storage area).

For RSO Oceana:

stock material with a storage location that begins with a 3 (JETMART) or 5 (ASD), the Contractor shall turn the material over to the ASD Oceana Material Delivery Unit (MDU). Stowage information for these stock receipts will be provided by the Oceana Aviation Support Division (ASD) and input/update ERP by the DGR every four hours during core business hours. The Contractor shall locate material with unique characteristics (e.g. confidential, pilferable, in separate storage area. The Contractor shall manage shelf life, identify defective material, and process

MTIS. The Contractor shall store material in a safe, secure, and easily identifiable manner IAW DOD INST 4145.19 (Storage and Warehouse Facilities and Services) and NAVSUP Pub 529 (Warehouse Modernization & Layout Planning Guide). The Contractor shall consolidate newly received material with similar material in same locations and shall perform COMIS, location maintenance, re-warehousing, and general housekeeping duties. The Contractor shall maintain 100% accountability and physical security of all classified material received IAW SECNAVINST 5510.36a (Department of the Navy (DON) Information Security Program (ISP) Regulations), 49 CFR, OPNAVINST 5530.14D, Appendix X and SECNAV M-5510.36 Exhibit 9A. Contractor will ensure that a Report of Shipment (REPSHIP) has been received and that the correct material and quantity is accounted for. In the event that a REPSHIP was not previously received or the material or quantity is invalid, the contractor will immediately notify the COR of the discrepancy. The Contractor shall process change notice actions, to include marking/relocating/consolidating material in stock, as to security classification and stock number changes resulting from ERP monthly updates. The ASD shall induct NRFI repairables into the Fleet Readiness Center (FRC), prepare induction documentation, and store RFI items returned from FRC repair on DD-1348 marked "Material Movement Only". For RSO Oceana, the Contractor shall receive a DD-1348 marked "Material Movement Only" from the ASD for material moved from the Contractor's location to the ASD (buildings 301 and 513.

5.5 Manage Shelf Life

The Contractor shall maximize shelf life item use and minimize the risk of shelf life expirations IAW DOD INST 4140.27M (Shelf Life Item Management Manual). The Contractor shall perform physical stock inspection, stock rotation, date extension, and other tasks associated with the Shelf Life Program. The Contractor shall extend material and transfer material between condition codes for non-extendable items based on shelf life type code IAW SUPDEPTINST 4440.4B (Shelf Life Material Control).

5.6 Manage Defective Material

The Contractor shall receive notification of defective material via naval message and shall perform a physical inspection of existing stored material, labels, and packaging to determine if material meets the defective material criteria as set forth in the naval message and IAW NAVSUPINST 4400.91A [Management of Suspended Material (MILSTRAP Condition Codes J, K & L); Policy & Procedure]. The Contractor shall maintain a file of all defective material naval messages and screen all new receipts to determine if material meets criteria for defective material. The Contractor shall notify the COR and take disposition action as directed by the COR if the material is found to be defective. The Contractor shall not issue defective material. The Contractor shall draft a report via naval message for COR release, annotating defective material actions taken to include number of transactions processed and forwarded for action as directed by the COR. The Contractor shall take disposition action as directed by the COR.

5.7 Process Material Turned Into Stores

The Contractor shall receive, visually inspect and separate by category (e.g. AVDLRs, customer returns, and consumable material) and process MTIS in ERP, providing a copy of the MTIS documentation to the DGR as appropriate. Based on the quantity, quality, and condition of the material, the Contractor shall stow RFI material ("A" condition) or repairable items for reissue or request COR approval for disposal of MTIS. The Contractor shall process material approved for disposal to DLA Disposition Services as outline in the "Process Excess Material" section of this PWS.

5.8 Receive Material from Commercial Carriers

The contractor shall receive, visually inspect, and process material from commercial carriers (e. g. FEDEX, DHL, UPS, etc.). Immediately upon receipt, the contractor shall verify the material received against the manifest. Upon discovery of any missing or damaged material, log onto the appropriate carriers website to report the discrepancy.

5.9 Receive and Stow Custody Material

The Contractor shall provide custody material storage (long and short-term) at the direction of the COR and in consideration of available storage space. The Contractor shall provide dedicated and secured temporary storage for material under investigation including material received from engineering investigations and accident investigations as directed by the COR. The contractor shall store this material in designation locations as directed by the COR and annotate receipt documentation with appropriate serial number for all depot level repairable items.

5.10 Receive Direct Turn-Over (DTO) Material

The Contractor shall verify tailgate receipts for customer material and annotate receipt documentation with appropriate serial number for all depot level repairable items. A 100% receipt inspection is only required for repairable, classified, and pilferable materials. The Contractor shall deliver the material to the site MDU as designated by the DGR based on priority IAW COMNAVAIRPAC/ COMNAVAILANTINST 4415.1or stage the material for pick up upon customer request. For DTO material that the contractor delivers, the contractor shall

obtain a dated receipt signature on the DD-1348-1 with a clear and legible signature from the customer and provide them to the DGR for appropriate posting. When the Contractor receives hazardous material, it shall be segregated in a special hazardous material bay pending delivery to the customer or storage. There shall not be any hazardous material, classified material, ADP equipment, tools or open purchase material on the receiving floor, cargo ramps, vehicles, or any building except those designated for such material by close of business the day of receipt. If delivery to the ultimate destination is not possible at the time, the material will be temporarily stored in a temporary area within the designated flammable/hazardous building. The Contractor shall transship DTO material to deployed squadrons IAW the deployed unit list provided by the COR. The Contractor shall maintain 100% accountability and physical security of all classified material received IAW SECNAVINST 5510.36a (Department of the Navy (DON) Information Security Program (ISP) Regulations), 49 CFR, OPNAVINST 5530.14D, Appendix X and SECNAV M- 5510.36 Exhibit 9A. Contractor will ensure that a Report of Shipment (REPSHIP) has been received and that the correct material and quantity is accounted for. In the event that a REPSHIP was not previously received or the material or quantity is invalid, the contractor will immediately notify the COR of the discrepancy. The Contractor shall provide custody storage for squadron DTO material when squadrons are on detachment (e.g. NAS Fallon) or for customer-owned material as directed by the COR.

5.11 Process Discrepant Material

For transportation discrepancies that cannot be resolved while the carrier is on site, the Contractor shall annotate receipt documentation as discrepant; annotate discrepant information and forward to the designated government representative (DGR) who will generate a Transportation Discrepancy Report (TDR). The contractor shall also determine whether a receipt discrepancy meets the criteria of a Supply Discrepancy Report (SDR) as described in NAVSUP Pub 723 (Navy Inventory Integrity Procedures). If the receipt satisfies discrepancy criteria, the Contractor shall stamp the receipt document as discrepant, annotate discrepant information and forward to the DGR who will generate a SDR. The Contractor shall otherwise process the receipt and make appropriate quantity adjustments in ERP or forward, as directed IAW local procedures, to the DGR for appropriate quantity adjustments in ERP. The Contractor shall attempt to determine repair costs for transportation discrepancies and shall report results to the COR. The Contractor shall notify the COR of discrepancies involving classified items, as well as any other items regardless of price or condition.

5.12 Issue Stock Material

The Contractor shall issue and arrange the delivery and shipment of stock material in coordination with the site's Material Delivery Unit (MDU). The Contractor shall respond to authorized customer requisitions received by pulling appropriate material (quantity and stock), providing appropriate packaging if required (refer to Sections C5.2.1.4, "Package and Preserve Material"), stage for customer pick-up, deliver, shipping material (refer to Sections C5.2.2) as required. The Contractor shall issue material IAW OPNAVINST 4614.1F (UMMIPS), OPNAVINST 4790.2H [The Naval Aviation Maintenance Program (NAMP)], NAVSUP Pub 485 (Naval Supply Procedures) and COMNAVAIRPAC/COMNAVAIRLANT 4415.1. The Contractor shall issue material as needed to maximize shelf life item use and minimize the risk of shelf life expirations. The Contractor shall ensure a "Serviceable Tag" (DD 1574) is affixed to repairables prior to issue. The Contractor shall prepare a "Signature and Tally Record" (DD 1907) for all classified and pilferable materials. The Contractor shall ensure material is issued to on site customers designated in writing by the COR. The Contractor shall record date, time, serial number, initial issue quantity upon issuance of material and annotate issue documentation with appropriate serial number for all depot level repairable items. The Contractor shall obtain a signed receipt from an authorized customer representative on the "DOD Single Line Item Requisition System Document" (DD 1348) upon material delivery for pilferable, classified, and repairable materials. For all other materials, the Contractor shall obtain a dated receipt signature on the DD1348-1 or manifest for received material with a clear and legible printed name and signature to the DGR as appropriate for posting.

5.13 Issue Custody Material

The Contractor shall issue custody material and annotate issue documentation with appropriate serial number for all depot level repairable items. The Contractor shall provide support by meeting the customer at the stowage site at a prearranged time, pulling appropriate material (quantity and stock), providing appropriate packaging if required.

5.14 Package and Preserve Material

The Contractor shall preserve, pack, crate, certify, and label material for shipment or storage. This process includes certifying HAZMAT and providing specialized packaging IAW 49 CFR, DOD INST 4500.9R (Defense Transportation Regulation), AFJMAN 24-204 (Air Force Joint Manual), NAVSUP Pub 505 (Preparation of Hazardous Materials for Military Air Shipment), International Air Transport Association (IATA), and International Maritime Dangerous Goods Codes (IMDGC) prior to issuing. In accordance with the requirements of International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). WPM is defined as wood pallets, skids, load boards, pallet collars, wooden boxes, reels, dunnage, crates, frames, and cleats. Packaging materials exempt from the requirements are materials that have undergone a manufacturing process such as corrugated fiberboard, plywood, particleboard, veneer and oriented strand board. All WPM shall be constructed from Heat Treated (HT to 56 degrees Centigrade for 30 minutes) lumber and certified by an accredited agency recognized by the ALSC in accordance with Wood Packaging Material Policy and wood Packaging Material Enforcement Regulations. All materials must include certification markings in accordance with ALSC standards and be placed in an unobstructed area that will be readily visible to inspectors. Pallet markings shall be applied to the stringer or block on diagonally opposite sides and ends of the pallet and be contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ALSC approved DUNNAGE stamp. Failure to comply with the requirements of this restriction may result in refusal, destruction, or treatment of materials at the point of entry. The Contractor shall be responsible for the accountability and physical security of all material received for packing. The Contractor shall double-pack, label, and seal classified material up to confidential IAW SECNAVINST 5510.36A [Department of the Navy (DON) Information Security Program (ISP) Regulation]. The Contractor shall complete a "Signature and Tally Record" (DD 1907) each time classified material changes hands. If the Contractor receives classified material, but will not ship the same day, the Contractor shall arrange secure overnight storage in the security cage located in Building SP-86 for RSO Norfolk and Building 720 for RSO Oceana. The Contractor shall unload material delivered for packing and crating. The Contractor shall determine package requirements based on destination, mode of shipment, type of load, and level of protection IAW MIL STD 2073-1D (DOD Standard Practice for Military Packaging) and IAW CNP-P700 (Common Naval Packaging). The Contractor shall design the necessary packaging and pack, mark, block and brace, and affix labels for material shipments and storage for materials not being stowed in a "W" purpose location. The Contractor shall load outbound shipments and secure items by chocking, strapping, tying down, shoring, etc., to ensure proper and safe transportation. The Contractor shall provide packing/crating and hazardous certification support for NAB Little Creek and customer sites as directed by the COR. The contractor shall provide all documentation for material shipped along with shipment tracking number to the DGR for database update and completion.

5.15 Process Excess Material

The Contractor shall receive excess material, including non-standard items (e.g. refrigerators and furniture) IAW

DOD INST 4160.21M (Defense Reutilization and Marketing Manual) with accompanying documentation (DD 1348) turned in by customers. The Contractor shall ensure items match the documentation and are approved for disposal by the COR. The Contractor shall assist the customer with proper identification and documentation of excess material. The Contractor shall ensure that all material for turnover to a disposal site is cleared of any and all special military markings, codes, or serial numbers (demilitarization) IAW DOD INST 4160.21M-1 (Defense Demilitarization Manual) and NAVSUP Pub 723 (Navy Inventory Integrity Procedures). In the event of an "A"

condition stock number excess, the Contractor shall pull excess material out of location IAW the information on the 1348-1 provided by the government. The contractor shall annotate the documentation, specifically the quantity pulled and quantity remaining, package the material being offload IAW P700 CNP criteria, attach appropriate documentation to the material, annotate issue documentation with appropriate serial number for all depot level repairable items and stage material for turn over to the applicable receiving activity. The Contractor shall load/unload excess material, schedule appointments, and deliver excess material to the designated receiving facility (e. g. DDNV, DLA Disposition Services). The Contractor shall handle radioactive material IAW 49 CFR. The

Contractor shall perform follow-ups for items rejected by the designated facility by coordinating material pick up and loading/unloading rejected material.

5.16 Inventory Support

Current directives require RSO Norfolk and Oceana to carry out an ongoing Physical Inventory and Location Audit program to establish the status of warehouse inventory accuracy. A scheduled inventory is annually promulgated.

On-going special or "spot" inventories, as well as semi-annual, quarterly and daily inventories are conducted on a daily basis and as required. Inventory personnel will be in warehouse spaces on a routine basis. The Contractor shall actively support the Inventory and Location Audit Program by:

Notifying the COR of any condition which would interfere with an accurate inventory.

Scheduling work to reduce in-process transactions when scheduled inventories are in process in specific storage areas. Controlling all incomplete transactions during an inventory Providing access to all storage area as required

Providing MHE assistance for the inventory counters to retrieve and restore material within one hour of request.

Providing MHE assistance to raise and lower count personnel as required and in taking down and replacing pallets of materials in stock within one hour of request.

5.17 MHE Assistance

The Contractor shall provide MHE assistance to PWC facility repair and maintenance personnel to raise and lower personnel performing repair and maintenance service to assigned warehouse facilities and to temporarily move material while repairs/maintenance are being performed.

5.18 Ship Material

The Contractor shall arrange/coordinate the shipment of stock, custody, or customer-furnished material (e.g. classified, AA& E, aircraft parts, hazardous and general commodity materials) upon customer request. All materials

to be shipped will be verified in WEBFLIS to check for HAZARDS and CLASSIFIED materials prior to booking

the shipment. The Contractor shall visually inspect items received for shipment from authorized customers to

ensure that the outer shipping container is not damaged and annotate the DD 1149 or DD 1348 shipped as received (SAR). The Contractor shall receive DD Forms 1149 or 1348-1, review the forms for accuracy and required data, and determine if material meets the criteria of small package based on size and weight, or if the shipment must be coordinated with the central shipping office. For shipments weighing 1-150 pounds that meet the criteria for small packages, the Contractor will utilize the appropriated Government Small Package contract carrier. (See TE 17 "SOP Small Package Shipments"). For shipments weighing 1-150 pounds that do not meet the criteria for small package shipments, and for shipments weighing greater than 150 pounds, the Contractor will coordinate shipment with the Regional Transportation Office by utilizing TRIMS ensuring the number of pieces, weight, cube, dimensions, and TAC are annotated on documentation. (See TE 18 "SOP Shipments over 150#"). In all cases the appropriate transportation instructions will be adhered to {DOD 4500.9R (Defense Transportation Regulation), Surface Deployment and Distribution Command (SDDC) Freight Traffic Rules Publication 1B (Rules and Accessorial

Services Governing the Movement of DOD Freight Traffic by Motor Carrier), NAVSUP Pub 1, Vol. 5

(Transportation of Property), 49 CFR, IATA; NAVSUP Pub 505 (Preparation of Hazardous Materials for Military

Air Shipment); DOD INST 4500.9R (Defense Transportation Regulation); Air Mobility Command (AMC) Freight

Traffic Rules Publication No. 5 (Govern DOD Movement Via Air Carrier, Air Forwarder, and Air Taxi within

CONUS); and, AFJMAN 24-204 (Military Air Packaging)}. The Contractor shall use Financial and Air Clearance

Transportation System (FACTS) to determine receiving locations for mobile units and appropriate routing identifiers for material moving within Defense Transportation System (DTS) (both air and surface), and certify forms for HAZMAT shipments IAW CFR 49, prepare commercial invoices for customs declarations, prepare bar-coded DD 1348-1A, "Military Shipment Label" DD 1387, using the Computer Automated Transportation Tool Software (CATS) and affix to material. The Contractor shall monitor inbound and outbound carrier performance and issue service failure reports to the COR when incorrect material is received or when the carrier does not provide the services as directed by the Contractor. Delayed Shipments, Contractor shall make its best effort to deliver large gear and any other item requiring the use of a tractor/trailer, according to issue priority group time frames as assigned and prioritized by the COR. Contractor is not liable for any delays resulting from the unavailability of the equipment if the equipment is already in use for another task, pre-scheduled by the COR. The Contractor shall load trucks, certify hazardous shipments as required, off-load trucks and obtain a signed POD. (See TE 16/20 "RSO

Oceana/Norfolk Historical Warehouse Operations Workload" respectively). The Contractor shall annotate DD

1348/1149's with shipping information and provide to Retail Operations to update ERP. The Contractor shall

maintain 100% accountability and physical security of all classified material IAW SECNAVINST 5510.36a

(Department of the Navy (DON) Information Security Program (ISP) Regulations), 49 CFR, OPNAVINST

5530.14D, Appendix X and SECNAV M-5510.36 Exhibit 9A. Contractor will ensure that a Report of Shipment

(REPSHIP) has been sent and acknowledgement received before the shipment is released.

5.19 RSO NORFOLK SPECIFIC TASKS

5.19.1 Local Pick Up and Deliver Material

As directed by the DGR, the Contractor shall pick up and deliver material IAW customer requests, and deliver to

the respective RSO. All other deliveries will be made to the site's MDU as designated by the DGR. The

Contractor shall make pick ups/deliveries to local post offices. The Contractor shall pick up material, such as MTIS,

materials returns and retrograde from customer locations and shall deliver retrograde to the ATAC HUB. The

contractor shall provide documentation for all MTIS returns to the DGR as appropriate for research prior to stowing material in location. The Contractor shall sort, stage, and deliver stock, custody or DTO material either between storage sites, or from a storage

and/or staging site, or to/from a customer work center. The Contractor shall provide support to include sorting and staging material for delivery, loading and unloading trucks, securing the material, and making deliveries IAW NAVSUP Pub 485 Vol. III (Naval Supply Procedures) without incurring damage. The Contractor shall physically unload and carry all packages less than 50 pounds or 27 cubic feet into customer activity receiving area. The Contractor shall obtain a signed POD from an authorized person on the issue/receipt document. The Contractor shall pick up and reuse empty pallets when conducting pick-up/deliveries. Concerning classified pick-up and deliveries the Contractor shall take appropriate security measures by locking trucks and performing special handling, including passing material hand-to-hand and enforcing strict signature service ("Signature and Tally Record" DD 1907) depending on the priority or security classification IAW SECNAVINST 5510.36A [Department of the Navy (DON) Information Security program (ISP) Regulation].

When the Contractor drivers leave the Sewell's Point naval base complex to make pickup and deliveries at other naval installations, the Contractor driver shall carry an updated "Material Movement Control Gate Pass" (5ND 5510/1), and when applicable a car seal in accordance with the latest Navy directive on truck control. The Contractor shall take no other Government owned property off the Sewell's Point complex except for delivery to RSON customers with proper documentation. When directed by the COR, the Contractor shall pickup and deliver PUK storage containers within the Sewells Point Naval Complex. The Contractor shall provide all necessary MHE, associated handling materials, and vehicles to load or off-load PUK storage containers for pickup/delivery as required. Estimated average workload is twice monthly. The PUK storage containers range in weight from 15,000 to 25,000 pounds.

5.19.2 Process Supplemental Aviation Spares Support

The Contractor shall receive, store, assemble, disassemble, and inventory "L" Purpose materials for the purpose of Supplemental Aviation Spares Support (SASS) commonly called Pack-UpKits (PUKS). (The terms "L-Purpose", "SASS", and "pack-up" material are interchangeable.) When issuing or receiving a PUK, The Contractor shall provide both outbound and inbound support for these designated units. The Contractor and the customer shall perform a joint inventory when issuing the PUK to the customer and upon return of the PUK from the customer. The Contractor shall schedule, prepare, and either ship out of the local area or locally deliver within a 50-mile radius pack-up kits to the customer squadrons, or detachments IAW COMNAVAIRFOR and COMNAVSURFORINST 4420. The numbers and types of packup kits will vary based on the operational customer's requirements. The Contractor shall review NALCOMIS reports to ensure inventories are complete and allowance quantities are accurate IAW the NALCOMIS pack-up list. The Contractor shall ensure proper storage is

available for all PUKs; prepare needed reports (e.g. number of pack-ups completed, where delivered, PUK accuracy, and availability) for the COR; maintain positive control of classified material; and, attend weekly pack-up planning meetings with Aviation Support Detachment (ASD). The Contractor shall inspect kit cabinets and containers, perform maintenance (with GFM) identified from the inspection, and notify the COR if unable to complete repairs. Upon return, the Contractor shall verify that all items recorded in a RFI condition have an RFI tag attached and that all material is properly package and preserved IAW publication P-700 Common Naval Packaging (CNP).

Additionally, the Contractor shall induct any repairable items for test and check/make RFI if they fail to meet this criteria. (See TE 20 "RSO Norfolk Historical Warehouse Operations Workload"). Prior to turning NRFI

components to FRC for repair, all electronic components shall be packed using static free bubble wrap and electrical connections covered with anti-static caps IAW OPNAVINST 4790.2H (The Naval Aviation Maintenance Program (NAMP)), prepare induction documentation, and store RFI items that are returned from FRC repair. For material returned to "W" purpose, whether from "L" purpose or FRC repair, the contractor shall ensure the material is packaged and preserved IAW the P700 CNP criteria. Material returned from "L" purpose must be accompanied by a PUK pull sheet.

Requirements

Warehouse operations support services include: Supplemental Aviation Spares Function (SASS), receiving, storing, Care For Material In Stock (COMIS), re-warehousing, issuing, delivery, pick up, crating, packing, physically handling, loading and unloading Government owned stock material and/or material ordered to support customers of RSO Oceana and RSO Norfolk.

Continuation of Packaging and Marking
Continuation of Inspection and Acceptance
Continuation of Deliveries or Performance

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Period of Performance From 01 Sep 2026 To 31 Aug 2027	12 Months	
0002	Period of Performance From 01 Sep 2026 To 31 Aug 2027	12 Months	
Option Line Item 0003	Period of Performance From 31 Aug 2027 To 01 Sep 2028	12 Months	
Option Line Item 0004	Period of Performance From 01 Sep 2027 To 31 Aug 2028	12 Months	
Option Line Item 0005	Period of Performance From 31 Aug 2028 To 01 Sep 2029	12 Months	
Option Line Item 0006	Period of Performance From 01 Sep 2028 To 31 Aug 2029	12 Months	
Option Line Item 0007	Period of Performance From 01 Sep 2029 To 31 Aug 2030	12 Months	
Option Line Item 0008	Period of Performance From 31 Aug 2029 To 01 Sep 2030	12 Months	
	Period of Performance From	12 Months	

Option Line Item 0009	31 Aug 2030 To 01 Sep 2031		
Option Line Item 0010	Period of Performance From 01 Sep 2030 To 31 Aug 2031	12 Months	
Option Line Item 0011	Period of Performance From 01 Sep 2031 To 31 Mar 2032	6 Months	
Option Line Item 0012	Period of Performance From 01 Sep 2031 To 31 Mar 2032	6 Months	

Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services.	Nov 2023		
52.222-41	Service Contract Labor Standards.	Aug 2018		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.222-42 **Statement of Equivalent Rates for Federal Hires.** **(May 2014)**

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5 332.

This Statement is for Information Only: It is not a Wage Determination

Labor Category Equivalency	Labor Category	
Warehouse Specialist	\$22.38	
Administrative Assistant	\$20.50	
Forklift Operator	\$19.86	
Material Coordinator	\$27.00	

Material Expeditor	\$17.87
Material Handling Laborer	\$17.87
Order Filler	\$18.29
Preservation Paker	\$15.00
Program Manager	\$65.00
Supply Clerk	\$15.00
Truck Driver Light	\$16.00
Truck Driver Medium	\$20.91
Truck Driver Heavy	\$23.00
Truck Driver Tractor- Trailer	\$26.00

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements. (Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: _____
Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023) To be completed at award!

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

=====
(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

=====
(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
--------------------	----------------------------

Pay Official DoDAAC	==
Issue By DoDAAC	==
Admin DoDAAC	==
Inspect By DoDAAC	==
Ship To Code	==
Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	==
Accept at Other DoDAAC	==
LPO DoDAAC	==
DCAA Auditor DoDAAC	==
Other DoDAAC(s)	==

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.201-7000	Contracting Officer's Representative.	Dec 1991		

FAR Clauses Incorporated by Full Text

52.217-8 Option to Extend Services. (Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 1 day.

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 day provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 1 day before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months.

(End of clause)

52.252-2 Clauses Incorporated by Reference. (Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/>
DFARS Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of clause)

52.252-6 Authorized Deviations in Clauses. (Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services. (Oct 2025) Deviation 2025-O0004 (Mar 2025) (DEVIATION 2025-O0003 and 2025-O0004)

Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (MAR 2025) (DEVIATION 2025-O0003 and 2025-O0004)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☒ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

- ☐ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- ☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).
- ☐ (11)
 - (i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).
 - ☐ (ii) Alternate I (Dec 2023) of 52.204-30.
- ☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).
- (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).
- ☐ (14) [Reserved].
- ☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).
- ☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- ☐ (17) [Reserved]
- ☐ (18)
 - (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
 - ☐ (ii) Alternate I (Mar 2020) of 52.219-6.
- ☐ (19)
 - (i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
 - ☐ (ii) Alternate I (Mar 2020) of 52.219-7.
- ☐ (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).
- ☐ (21)
 - (i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).
 - ☐ (ii) Alternate I (Nov 2016) of 52.219-9.
 - ☐ (iii) Alternate II (Nov 2016) of 52.219-9.
 - ☐ (iv) Alternate III (Jun 2020) of 52.219-9.
 - ☐ (v) Alternate IV (Jan 2025) of 52.219-9.
- ☐ (22)
 - (i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).
 - ☐ (ii) Alternate I (Mar 2020) of 52.219-13.
- ☐ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).
- ☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).
- ☐ (26)
 - ☒ (i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (Mar 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

☐ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

☒ (31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).

☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025)(E.O. 13126).

☐ (33) [Reserved]

☐ (34) [Reserved]

☒ (35)(i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (Jul 2014) of 52.222-35.

☐ (36)

(i)☒ 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (Jul 2014) of 52.222-36.

☒ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

☐ (39)

(i) ☒ 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☒ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, *et seq.*).

☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, *et seq.*).

☐ (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, *et seq.*).

☐ (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, *et seq.*).

☐ (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

☐ (47)

(i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).

☐ (ii) Alternate I (Jan 2017) of 52.224-3.

☐ (48)

(i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

☐ (ii) Alternate I (Oct 2022) of 52.225-1.

☐ (49)

(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

☐ (ii) Alternate I [Reserved].

☐ (iii) Alternate II (Jan 2025) of 52.225-3.

☐ (iv) Alternate III (Feb 2024) of 52.225-3.

☐ (v) Alternate IV (Oct 2022) of 52.225-3.

☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).

(51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

☐ (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).

☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

☐ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

☐ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

☒ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

☐ (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

☐ (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (Apr 2003) of 52.247-64.

☐ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[X] (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).

[] (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

[] (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

[X] (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

[X](8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

[] (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118 (g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi)

(A) X 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

CONTRACT ADMINISTRATION PLAN (CAP)

FOR FIXED PRICE CONTRACTS

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In order to expedite the administration of this contract, the following delineation of duties is provided. The names, addresses and phone numbers for these offices or individuals are included elsewhere in the contract award document. The office or individual designated as having responsibility should be contacted for any questions, clarifications, or information regarding the administration function assigned.

1. The Procuring Contract Office (PCO) is responsible for:

- a. All pre-award duties such as solicitation, negotiation and award of contracts.
- b. Any information or questions during the pre-award stage of the procurement.
- c. Freedom of Information inquiries.
- d. Changes in contract terms and/or conditions.
- e. Post award conference.

2. The Contract Administration Office (CAO) is responsible for matters specified in the FAR 42.302 and DFARS 42.302 except those areas otherwise designated as the responsibility of the Contracting Officer's Representative (COR) or someone else herein.

3. The paying office is responsible for making payment of proper invoices after acceptance is documented.

4. The Contracting Officer's Representative (COR) is responsible for interface with the contractor and performance of duties such as those set forth below. It is emphasized that only the PCO/CAO has the authority to modify the terms of the contract. In no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the contractor and any other person be effective or binding on the Government. If in the opinion of the contractor an effort outside the scope of the contract is requested, the contractor shall promptly notify the PCO in writing. No action may be taken by the contractor unless the PCO or CAO has issued a contractual change. The COR duties are as follows:

a. Technical Interface

(1) The COR is responsible for all Government technical interface concerning the contractor and furnishing technical instructions to the contractor. These instructions may include: technical advice/recommendations/clarifications of specific details relating to technical aspects of contract requirements; milestones to be met within the general terms of the contract or specific subtasks of the contract; or, any other interface of a technical nature necessary for the contractor to perform the work specified in the contract. The COR is the point of contact through whom the contractor can relay questions and problems of a technical nature to the PCO.

(2) The COR is prohibited from issuing any instruction which would constitute a contractual change. The COR shall not instruct the contractor how to perform. If there is any doubt whether technical instructions contemplated fall within the scope of work, contact the PCO for guidance before transmitting the instructions to the contractor.

b. Contract Surveillance

(1) The COR shall monitor the contractor's performance and progress under the contract. In performing contract surveillance duties, the COR should exercise extreme care to ensure that he/she does not cross the line of personal services. The COR must be able to distinguish between surveillance (which is proper and necessary) and supervision (which is not permitted). Surveillance becomes supervision when you go beyond enforcing the terms of the contract. If the contractor is directed to perform the contract services in a specific manner, the line is being crossed. In such a situation, the COR's actions would be equivalent to using the contractor's personnel as if they were government employees and would constitute transforming the contract into one for personal services.

(2) The COR shall monitor contractor performance to see that inefficient or wasteful methods are not being used. If such practices are observed, the COR is responsible for taking reasonable and timely action to alert the contractor and the PCO to the situation.

(3) The COR will take timely action to alert the PCO to any potential performance problems. If performance schedule slippage is detected, the COR should determine the factors causing the delay and report them to the PCO, along with the contractor's proposed actions to eliminate or overcome these factors and recover the slippage. Once a recovery plan has been put in place, the COR is responsible for monitoring the recovery and keeping the PCO advised of progress.

(4) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a Contractor Performance Assessment Report (CPAR) in the CPARS Automated Information System (AIS). The initial CPAR, under an eligible contract, must reflect evaluation of at least 180 days of contractor performance. The completed CPAR, including contractor comments if any, (NOTE: contractors are allowed 30 days to input their comments) should be available in the CPARS AIS for reviewing official (PCO) review no later than 270 days after start of contract performance. Subsequent CPARs covering any contract option periods should be ready at 1-year intervals thereafter.

c. Invoice Review and Approval/Inspection and Acceptance

(1) The COR is responsible for quality assurance of services performed and acceptance of the services or deliverables. The COR shall expeditiously review copies of the contractor's invoices or vouchers, certificate of performance and all other supporting documentation to determine the reasonableness of the billing. In making this determination, the COR must take into consideration all documentary information available and any information developed from personal observations.

(2) The COR must indicate either complete or partial concurrence with the contractor's invoice/voucher by executing the applicable certificate of performance furnished by the contractor. The COR must be cognizant of the invoicing procedures and prompt payment due dates detailed elsewhere in the contract.

(3) The COR will provide the PCO and the CAO with copies of acceptance documents such as Certificates of Performance.

(4) The COR shall work with the Contractor to obtain and execute a final invoice no more than 60 days after completion of contract performance. The COR shall ensure that the invoice is clearly marked as a "Final Invoice."

d. Contract Modifications. The COR is responsible for developing the statement of work for change orders or modifications and for preparing an independent government cost estimate of the effort described in the proposed statement of work.

e. Administrative Duties

(1) The COR shall take appropriate action on technical correspondence pertaining to the contract and for maintaining files on each contract. This includes all modifications, government cost estimates, contractor invoices/vouchers, certificates of performance, DD 250 forms and contractor's status reports.

(2) The COR shall maintain files on all correspondence relating to contractor performance, whether satisfactory or unsatisfactory, and on trip reports for all government personnel visiting the contractor's place of business for the purpose of discussing the contract.

(3) The COR must take prompt action to provide the PCO with any contractor or technical code request for change, deviation or waiver, along with any supporting analysis or other required documentation.

f. Government Furnished Property. When government property is to be furnished to the contractor, the COR will take the necessary steps to insure that it is furnished in a timely fashion and in proper condition for use. The COR will maintain adequate records to ensure that property furnished is returned and/or that material has been consumed in the performance of work.

Enclosure (1)

g. Security. The COR is responsible for ensuring that any applicable security requirements are strictly adhered to.

h. Standards of Conduct. The COR is responsible for reading and complying with all applicable agency standards of conduct and conflict of interest instructions.

i. Written Report/Contract Completion Statement.

(1) The COR is responsible for timely preparation and submission to the PCO, of a written, annual evaluation of the contractors performance. The report shall be submitted within 30 days prior to the exercise of any contract option and 60 days after contract completion. The report shall include a written statement that services were received in accordance with the Contract terms and that the contract is now available for close-out. The report shall also include a statement as to the use made of any deliverables furnished by the contractor.

(2) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a final Contractor Performance Assessment Report (CPAR) in the CPARS with 30 days of contract completion.

(3) The COR is responsible for providing necessary assistance to the Contracting Officer in performing Contract Close-out in accordance with FAR 4.804, Closeout of Contract Files.

5. The Technical Assistant (TA), if appointed, is responsible for providing routine administration and monitoring assistance to the COR. The TA does not have the authority to provide any technical direction or clarification to the contract. Duties that may be performed by the TA are as follows:

a. Identify contractor deficiencies to the COR.

b. Review contract deliverables, recommend acceptance/rejection, and provide the COR with documentation to support the recommendation.

- c. Assist in preparing the final report on contractor performance for the applicable contract in accordance with the format and procedures prescribed by the COR.
- d. Identify contract noncompliance with reporting requirements to the COR.
- e. Review contractor status and progress reports, identify deficiencies to the COR, and provide the COR with recommendations regarding acceptance, rejection, and/or Government technical clarification requests.
- f. Review invoices and provide the COR with recommendations to facilitate COR certification of the invoice.
- g. Provide the COR with timely input regarding technical clarifications for the statement of work, possible technical direction to provide the contractor, and recommend corrective actions.
- h. Provide detailed written reports of any trip, meeting, or conversation to the COR subsequent to any interface between the TA and contractor.

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services.	Sep 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		

FAR Clauses Incorporated by Full Text

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)

REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that-

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation.

(Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

Section L: Instructions, Conditions, and notices to Offerors

In addition to FAR 52.212-1, "Instruction to Offerors - Commercial Items" and any other instructions contained elsewhere in this solicitation, the following instructions are provided.

The Government intends to award a Firm Fixed Price (FFP) contract as a result of this solicitation in accordance with FAR Part 8 - Required Sources of Supplies and Services, and FAR Part 15- Contracting by Negotiation, after the price is determined to be fair and reasonable. The Government intends to evaluate the proposal and award a contract based on initial proposals; therefore, the offeror's initial proposal should contain the offeror's best terms from a facility security clearance and price standpoint.

QUESTIONS: Offerors may submit questions regarding clarification of solicitation requirements via email to Brittany Simmons at brittany.s.simmons3.civ@us.navy.mil or Christopher Whiteside at Christopher.d.whiteside2.civ@us.navy.mil. It is requested that all questions be received by 19 February 2026 by **1000 AM Eastern Time**, as time may not permit responses to questions received after that date to be prepared and issued prior to the receipt of quotations.

(1) Proposals shall be submitted to Brittany Simmons at brittany.s.simmons3.civ@us.navy.mil and Christopher Whiteside at Christopher.d.whiteside2.civ@us.navy.mil no later than the due date of the solicitation. Offerors shall comply with the detailed instructions for the format and content of the proposal contained herein; proposals that does not comply may be considered unacceptable and may render the proposal ineligible for award.

(2) All submission and attachments shall be in Microsoft Office Word, Excel or as an Adobe file. Submissions are page limited to the maximum number of pages as defined below. These page limitations are inclusive of the executive summary and any charts, diagrams, and/or other graphics. Graphics (including tables) in the proposal may use an alternative font with 8 point size type or larger. Each "page" is defined as one sheet, 8 1/2 " x 11", with at least one inch margins on all sides, using a font with a point size of 12 or greater (e.g., "Times New Roman" style with 12 point font). Lines shall, at a minimum, be selected as single-spaced in Microsoft Word with Microsoft Word Normal character spacing. Pages shall be consecutively numbered. Multiple pages, double pages, two-sided pages, or foldouts will count as an equivalent number of 8 1/2" x 11" pages. The offeror is permitted to submit no more than one page for each of the following, which will not be included in the page count: a cover sheet, list of tables, list of figures, compliance matrix, table of contents, tabs, and dividers.

Proposal Content:

The proposal should contain the following items in addition to other information required by this solicitation. The cover page should indicate the following:

- Name and Address of Offeror, Cage Code, Unique Entity ID, and applicable TAX I.D Number (TIN)
- Point of Contact name, telephone number, and email address
- Proposal validity until the performance period start date

Factor I - Facility Security Clearance

The offeror shall provide verification that it possesses an active Facility Clearance (FCL) **Secret** at the time of proposal submission as identified in the PWS. The verification shall be provided via the Defense Counterintelligence and Security Agency's (DCSA) National Industrial Security System (NISS) and obtained no earlier than 30 days prior to the issuance of the solicitation. The Verification request shall include the following: Cage Code, Facility Name, Physical Location, Facility Clearance Status/Level, Status Date/Issue Date, Safeguarding Level, Authorized Access to FCL Limitation, Facility Security Officer, Facility Security Officer Phone Number, DCSA Field Office, and DCSA Officer Phone Number.

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Factor II - Price Proposal

The Price Proposal shall include the completed solicitation documents. The price proposal shall include all elements of price and such other information considered appropriate to support the Offeror's proposal. The pricing information shall be completed in accordance with the following:

- (a) A completed and signed page 1 of the solicitation and a completed and signed page 1 of any amendments

(b) A completed section B "Supplies or Services and Price"

(c) All supplemental information to support proposed price, to include but not limited to fully burdened labor rates and estimated level of effort by labor category. All price and price supporting information shall be contained in the Price proposal. No price or pricing information shall be included in any other volume including cover letters. Offerors are responsible for submitting sufficient information to enable the Government to fully evaluate their price proposal.

(d) In addition to providing the above supporting data, the price proposal shall also contain the offeror's acknowledgement of the applicable Service Contract Labor Standards (SCLS) regulations as they apply to this requirement and confirmation of the offeror's compliance with those regulations, to include whether or not escalation was applied to the labor rates. In support of this, the price submission shall include the SCLS labor categories that will be utilized and the direct labor rates to be paid. The offeror shall provide the Collective Bargaining Agreement applicable.

(e) Offerors shall complete the "Representations, Certifications and Other Statements of Offerors" contained in the solicitation (FAR provision 52.212-3 Alternate I). Additionally, unless the offeror has completed the most current version in SAM, the offeror shall complete FAR 52.204-24, FAR 52.204-26, FAR 52.209-7, FAR 52.209-11, DFARS 252.204-7016 and DFARS 252.204-7017 in the solicitation.

(f) Proposal shall be valid until the start of the Period of Performance for this requirement

Section M: Evaluation Criteria:

The Government intends to award a Firm Fixed Price (FFP) contract as a result of this solicitation in accordance with FAR Part 8 - Required Sources of Supplies and Services, and FAR Part 15 - Contracting by Negotiation after the price is determined to be fair and reasonable. The Government intends to evaluate and award a contract based on initial proposal; therefore, the offeror's initial proposal should contain the offeror's best terms from a price standpoint.

Factor I - Facility Security Clearance

Facility Security Clearance will be evaluated, the offeror will receive a rating of Acceptable/Unacceptable based on its submission of the verification of its **Secret** Facilities Clearance Level meeting the requirements as detailed. This will be evaluated on an Acceptable/Unacceptable basis utilizing the "Acceptable/Unacceptable" rating Table below. Offerors receiving an 'Acceptable' rating will move forward. Offerors receiving an 'Unacceptable' rating will be considered un-awardable and will not be further evaluated.

Factor II - Price

Total price will be evaluated taking into the account the total FFP for the base year and option periods. Price analysis using procedures of FAR 15.404-1 will be used to evaluate price reasonableness. The Government may evaluate any and all information submitted by the vendor to support the reasonableness of prices proposed. The method of evaluation used by the Contracting Officer is solely within the discretion of the Contracting Officer.

Options will be evaluated pursuant to solicitation provision FAR 52.217-5, Evaluation of Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

Ratings Table

TABLE 1: FACILITY SECURITY CLEARANCE RATING TABLE

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Rating	Description
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Acceptable	Proposal meets the minimum requirements of the solicitation.
Unacceptable	Proposal does not meet the minimum requirements of the solicitation.

[BS2]Provided a tentative date

Evaluation - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services.

(Nov 2021)

Evaluation-Commercial Products and Commercial Services (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

The Government intends to award a Firm Fixed Price (FFP) contract as a result of this solicitation in accordance with FAR Part 8 - Required Sources of Supplies and Services, and FAR Part 15 - Contracting by Negotiation after the price is determined to be fair and reasonable. The Government intends to evaluate and award a contract based on initial proposal; therefore, the offeror's initial proposal should contain the offeror's best terms from a price standpoint.

Factor I - Facility Security Clearance

Facility Security Clearance will be evaluated, the offeror will receive a rating of Acceptable/Unacceptable based on its submission of the verification of its **Secret** Facilities Clearance Level meeting the requirements as detailed. This will be evaluated on an Acceptable/Unacceptable basis utilizing the "Acceptable/Unacceptable" rating Table below. Offerors receiving an 'Acceptable' rating will move forward. Offerors receiving an 'Unacceptable' rating will be considered un-awardable and will not be further evaluated.

Factor II - Price

Total price will be evaluated taking into the account the total FFP for the base year and option periods. Price analysis using procedures of FAR 15.404-1 will be used to evaluate price reasonableness. The Government may evaluate any and all information submitted by the vendor to support the reasonableness of prices proposed. The method of evaluation used by the Contracting Officer is solely within the discretion of the Contracting Officer.

Options will be evaluated pursuant to solicitation provision FAR 52.217-5, Evaluation of Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s). The Government may evaluate any and all information submitted by the vendor to support the reasonableness of prices proposed. The method of evaluation used by the Contracting Officer is solely within the discretion of the Contracting Officer.

Rating Table

TABLE 1: FACILITY SECURITY CLEARANCE RATING TABLE

Rating	Description
Acceptable	Proposal meets the minimum requirements of the solicitation.
Unacceptable	Proposal does not meet the minimum requirements of the solicitation.

(b) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.217-5	Evaluation of Options.	Jul 1990		
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications.	Jun 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.204-29 Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures. (Dec 2023)

FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS-REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(c) *Procedures.*

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation.

(Oct 2020)

COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c)

(1) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(Feb 1916)

REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.

(Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be

completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/>
DFARS Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DFARS (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004) (Oct 2025) Deviation 2025-O0004 (Mar 2025)

OFFEROR REPRESENTATIONS AND CERTIFICATIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025)
(DEVIATION 2025-O0003 AND 2025-O0004)

(a) *Definitions.* As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended."Sensitive technology"-

Sensitive technology-

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

- (1)
 - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that-

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(2) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
==	==	==
==	==	==
==	==	==

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. ____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

Line Item No.	Country of Origin
==	==
==	==
==	==

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
==	==	==
==	==	==
==	==	==

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____

---	---

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined*. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin
==	==
==	==

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i) ☐

(ii) ☐

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: ____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

- ☐ Corporate entity (tax-exempt);
- ☐ Government entity (Federal, State, or local);
- ☐ Foreign government;
- ☐ International organization per 26 CFR1.6049-4;
- ☐ Other ____.

(5) *Common parent.*

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name ____.

TIN ____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that-

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) [Reserved]

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation*. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation*. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

52.233-2 Service of Protest.

(Sep 2006)

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Christopher Whiteside, christopher.d.whiteside2.civ@us.navy.mil, 1968 Gilbert Street Suite 600, Norfolk, VA 23511.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions*. As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)", and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level*. The CMMC level required by this solicitation is: ____ [Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)]. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones*. If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers*. The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)